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File No.: EXP202209872

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Ms. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on September 9, 2022. The complaint is directed against Mr. B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), for the installation of a video surveillance system located at STREET ***ADDRESS.1, with indications of a possible violation of the provisions of Article 5.1.c) of the General Data Protection Regulation (hereinafter, GDPR).

The reasons supporting the complaint are as follows:

The complainant states that the respondent has installed three cameras, two on a window and one on a door of their residence, which are directed at common areas of the building where their residence is located, without prior authorization from the Community of Owners.

Images of the camera locations are provided.

The documents submitted are:

- Photographic report

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding of the complaint, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was not received by the responsible party.

The first attempt to forward was made on October 4, 2022, resulting in "Absent." It was "Returned to Origin due to Excess (Not collected at the office)" on October 11, 2022, according to the delivery impossibility certification in the file.

The second attempt to forward was made on October 25, 2022, resulting in "Absent." It was "Returned to Origin due to Excess (Not collected at the office)" on November 2, 2022, according to the delivery impossibility certification in the file.

Since the forwarding of the complaint has been returned on both occasions attempted, no response has been received to this forwarding document.

THIRD: On November 11, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On February 8, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified on February 9, 2023, in accordance with the rules established in the LPACAP. The respondent submitted a written statement in which, in summary, stated that:

"It is stated that the purpose of the cameras in my residence is to safeguard it. One of them is inside and directed at the entrance door. The other three are directed towards an interior patio which is a common area but the usufruct is mine and the access is from my house. The cameras were installed because the complainant throws objects into the patio, posing a risk of flooding as it blocks the drain. The installation was with the permission of the other owner C.C.C. ***NIF.2. My residence is closed for long periods and it is not possible to clean the objects that are thrown. The facts have been reported and the installation of the cameras has been made known. If I need to make any corrections to the installation to avoid violating the GDPR, I will do so. But those cameras safeguard my residence, as since they were installed, the complainant has not thrown objects again.

Complaints, images, and videos are attached, in which no images of people are captured."

SIXTH: On September 8, 2023, a proposal for resolution was notified, proposing the filing of the proceedings and granting a period of ten days for the submission of allegations, without having received any written response in this Agency.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: The complainant states that the respondent has installed three cameras, two on a window and one on a door of their residence, which are directed at common areas of the building where their residence is located.

SECOND: The respondent alleges that the purpose of the cameras in their residence is because the complainant throws objects into the patio, posing a risk of flooding as it blocks the drain.

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Allegations to the initiation agreement

In response to the allegations presented by the defendant, the following should be noted:

After examining the allegations of the defendant, these allegations are accepted, as there are no rational indications of the existence of an infringement, since the cameras that focus on the courtyard, which is a common area but can only be accessed through the door of the defendant's residence, are not a common area through which people can habitually wander. The installation of the cameras is justified in the report from the Civil Guard provided by the defendant. Moreover, the images submitted do not show the residence of the claimant, so there is no excess in the space captured by the cameras.

It can be concluded that we are faced with the impossibility of attributing an administrative infringement when it has not been proven, through evidence, that the cameras record the residence of the claimant, thus the case should be archived.

III

Presumption of Innocence

The principle of the presumption of innocence prevents attributing an administrative infringement when no evidence has been obtained and verified that substantiates the facts motivating the accusation or the involvement of the alleged infringer. Applying the principle "in dubio pro reo" in case of doubt regarding a specific and determined fact, which obliges, in any case, to resolve such doubt in the most favorable manner for the interested party.

The presumption of innocence must prevail without exceptions in the sanctioning system and must be respected in the imposition of any sanctions, as the exercise of the *ius puniendi*, in its various manifestations, is conditioned on the evidence and a contradictory procedure in which the parties can defend their positions. In this regard, the Constitutional Court in its Judgment 76/1990, of 26/04, considers that the right to the presumption of innocence entails: "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof lies with the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the results of the evidence presented, freely assessed by the sanctioning body, must result in an acquittal.

The presumption of innocence prevails without exceptions in the sanctioning system and must be respected in the imposition of any sanction, whether criminal or administrative (TC 13/1981), as the exercise of the sanctioning right, in any of its manifestations, is conditioned on the evidence and a contradictory procedure in which the parties can defend their positions.

In accordance with this principle, no sanction can be imposed based on the culpability of the accused if there is no incriminating evidence that, in the assessment of the authorities or bodies called to resolve, destroys this presumption (TC Auto 3-12-81).

IV

Conclusion

According to the above, it is not proven that images of the claimant's residence are captured.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Data Protection Agency

RESOLVES:

FIRST: TO ARCHIVE the present procedure initiated against Mr. B.B.B., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO NOTIFY this resolution to B.B.B.

THIRD: This resolution will be executive once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has elapsed without the interested party having exercised this right.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the C/ Jorge Juan, 6

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National Court, in accordance with the provisions of Article 25 and Section 5 of the Fourth Additional Provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative pathway may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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